

TENTATIVE RULING

LVNV Funding LLC

v.

Maicey Madden

24CV003269

Plaintiff's Motion for Order that Matters in Request for Admissions Be Deemed Admitted

Hearing Date: June 18, 2026

The motion by Plaintiff LVNV Funding LLC ("Plaintiff") for an order that the matters specified in Plaintiff's Request for Admissions to Defendant Maicey Madden ("Defendant") be deemed admitted is **GRANTED**.

The initial penalty for a party's failure to respond promptly to a Request for Admissions ("RFA") is a waiver of any objection to the requests, including those based on privilege or work product protection. [Code Civ. Proc. § 2033.280, subd. (a).] Failing to respond to an RFA does not automatically mean admissions. Instead, the propounding party must "move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction" under Code of Civil Procedure section 2033.010 et seq. [Code Civ. Proc. § 2033.280, subd. (b).] Specifically, a "court shall" grant a motion to deem request for admission contentions admitted, "unless [the court] finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." [Code Civ. Proc. § 2033.280, subd. (c).]

Here, Defendant never responded to Plaintiff's RFA, which was mail served on April 16, 2025. [Lucero Decl. at ¶ 2 and Exh. A.] Nine months later, on January 21, 2026, Plaintiff sent a meet-and-confer letter to Defendant regarding their outstanding responses to Plaintiff's discovery, including the RFA, and gave them until February 9 to serve responses. [*Id.* at ¶ 3 and Exh. B.] That deadline has passed, and Defendant has not served any response to Plaintiff's RFA.

Accordingly, Plaintiff's motion is **GRANTED**. The genuineness of any documents and the truth of any matters specified in Plaintiff's RFA are deemed admitted. [*Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979 ("[A] deemed admitted order establishes, by judicial fiat, that a nonresponding party has responded to the requests by admitting the truth of all matters contained therein.")].

The Court shall complete the Proposed Order accompanying Plaintiff's motion. Plaintiff shall notify the parties of the Court's order.